"Settlement Agreement"), the terms of which included payment by the defendant Pardeep Singh ("Defendant") in the amount of $21,227.71, plus costs, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Settlement Agreement, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶5. Defendant failed to cure after notice. *Id.* at ¶6 and **Exhibit A** thereto.

After credit for amounts paid, there remains $14,102.71 due and owing, plus costs of $518.50, for a total of $14,621.21. See Supporting Declaration, ¶¶7-8.

<u>Analysis</u>

Defendant was duly served with the motion. The motion is unopposed.

<u>Disposition</u>

The Court finds and orders as follows:

1. **The Motion to Enter Stipulated Judgment after Default is DROPPED from calendar.**

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3. 9:00 AM CASE NUMBER: L24-03014
CASE NAME: CAPITAL ONE, N.A. VS. KAREN JEFFERSON
***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILED BY PLN ON 9/9/25**
FILED BY:
<u>*TENTATIVE RULING:*</u>

Plaintiff Capital One, N.A. ("Plaintiff") filed a Motion for Judgment on the Pleadings on September 9, 2025 (the "Motion for Judgment on the Pleadings"). The Motion for Judgment on the Pleadings was set for hearing on November 25, 2025.

The Court previously continued the matter to December 30, 2025, 9:00 a.m. in Department 34 of the Court, at the parties' request in light of ongoing settlement discussions. All parties have actual notice of the continued hearing date.

The Court issues the following tentative ruling, as it does not appear that the matter was been withdrawn or any notice of settlement filed.

<u>Background</u>

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Karen L Jefferson (the "Defendant") admits all statements in the complaint are true and that Defendant owes the alleged debt.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al*., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges causes of action for Common Counts (Account Stated, Unjust Enrichment/Money Paid at Defendant's Special Instance and Request) based on the allegation that Defendant became indebted in the amount of $10,548.81 on an account. See Complaint filed April 12, 2024, p. 2, ¶¶8 and 10 and Attachments (1st Cause of Action).

Defendant's Answer was filed October 2, 2024. The Answer denies the allegations of the Complaint and states various affirmative defenses. See Answer filed October 2, 2024.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order entered July 3, 2025 (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, $10,548.81. See Deemed Admitted Order; see also RFAs attached as **Exhibit 1** to the Request for Judicial Notice filed September 9, 2025 ("RJN").

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

While the Defendant pled denials and defenses by way of the Answer, Defendant failed to raise those issues timely in response to the requests for admissions and the Deemed Admitted Order has been made by the Court and has not been set aside. Nor has Defendant opposed this Motion for Judgment on the Pleadings.

Arguably, the RFAs do not contain a catch all admission to the effect that there is no cognizable defense to the liability that would negate all of the pled affirmative defenses. See Code Civ. Proc. § 438(c)(1)(A) ("[i]f the moving party is a plaintiff," a motion for judgment on the pleadings may be made on the grounds that "…the complaint states facts sufficient to constitute a cause or causes of action against the defendant **and the answer does not state facts sufficient to constitute a defense to the complaint**.") (Emphasis added).

While some of the affirmative defenses are expressly negated by the admissions made as part of the Deemed Admitted Order, others are not. For example, the Answer pleads the defenses of "Unjust Enrichment." See Answer, p. 3. There is no RFA which admitted that this particular affirmative defense is without merit or otherwise constituted any admission that all of the pled affirmative defenses are without merit. See RJN, **Exhibit 1**, RFAs Nos. 1 through 13.

Nonetheless, the Court concludes here that the admissions made to the effect that "[t]he principal amount of $10,548.81 due set forth in the Complaint filed in this matter is correct" and "[e]very statement or allegation contained in Plaintiff's Complaint is true and correct" necessarily encompass an admission of no cognizable defense to the liability, especially in the absence of any opposition and showing to the contrary by Defendant.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff's Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for Common Counts (1st Cause of Action). As to the 1st Cause of Action for Common Counts, the Court finds that pleadings are sufficient to constitute a cause of action based on a theory of Account Stated. The Court need not consider the other alternative theories of liability.
2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint, as to Plaintiff's 1st Cause of Action.
3. Defendant became indebted in the amount of $10,548.81 on the subject credit card account, which amount is due and owing to Plaintiff.

<u>Costs</u>

The moving papers seek an award of recoverable costs in the sum of $777.00. However, it does not appear that any Memorandum of Costs or other supporting declaration(s) regarding costs were filed as part of the moving papers. Any recoverable costs may be sought by a timely filed Memorandum of Costs or otherwise in accordance with applicable law.

<u>Disposition</u>

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. The trial date of April 8, 2026 is VACATED.
3. A proposed form of order was lodged with the Court which the Court shall execute and enter.

4. 9:00 AM CASE NUMBER: L24-05801
CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. YAMESE PARKERSMITH
***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT UNDER STIP FILED BY PLNTF ON**